Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report

Licensee: Morrison Child and Family Services
Executive Director: Nick Gallo
Program Director(s): Alina Maldonado
Date of Unannounced: 9.20-21.23
Licensing Coordinator: Jorge Pelinski, and Holly Ivey
Other Regulatory or Accrediting Agencies: DHS Treatment Services, The Oregon Youth Authority, and The Federal Government

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings: License Renewal Site Visit November 14-16, 2022	**Repeat Findings Further Action Needed**	**Comments**
419-400-0040(3)(g) Approval from BCU: **Executive Director or Program Director Approval from BCU** • **Kelli Doolittle, Sage Program Director's Background Check was submitted by Morrison to the ODHS Background Check Unit (BCU) at the time of the review. The fitness determination was in process at the time of the review.**	**Yes☐ No✓**	• **DHS Licensing Coordinator received all of the above stated background checks. The agency is in compliance.**
Documents as indicated on the form titled "Renewal Licensing Required Documents": • **Certificates of Occupancy: Sage, and the Downtown Building.** • **Fire Marshal Inspections for all sites were completed, violations were found at all sites. The agency must submit verification that the violations have been remedied.** • **Environmental Inspections for all sites.**	**Yes☐ No✓**	Documents as indicated on the form titled "Renewal Licensing Required Documents": Certificates of Occupancy: Sage, and the Downtown Building. • **DHS Licensing Coordinator received all of the listed documents. The agency is in compliance.**

419-470-0020(2)(a)&(c) Buildings are smoke free, clean and in good repair: **Buildings are smoke free, clean and in good repair** **The following was identified in need of repair:** **Downtown ORR Shelter:** • **(LTGH) 4th Floor touch up paint needed in small areas in the hallway.** • **(LTGH) Bedroom 40A Two holes needed to be filled and paint needed**	**Yes☐ No✓**	• **The agency made needed repairs and is in compliance.**
413-470-0030(3)(c) Outside room with window allowing egress from building: • **Sage, LTGH, and the ORR residential programs, windows do not allow egress**	**Yes☐ No✓**	• **The agency submitted an exception request regarding the egress requirement. DHS Licensing approved the exception until the next renewal review.. The exception was approved since widows are fixed by design and not openable, and the building has been inspected and approved by the Fire Marshal. The agency is in compliance.**
419-400-0120(1)(a) & (3)(c) Background check completed and documented: • **One Background Check was not found in the personnel files reviewed for a Sage Staff.** • **Two Background Checks were not found in the personnel files reviewed for the ORR Program**.	**Yes☐ No✓**	• **DHS Licensing Coordinator received all the above stated background checks. The agency is in compliance with the above requirement.**
All required policies and procedures as identified in the "Umbrella Rules": 419-400-0150 Licensing Umbrella Rules: Discipline, Behavior Management & Training, and Suicide Prevention: (1) A child-caring agency, except a child-caring agency licensed only to provide adoption services under OAR 419-420-0010 to 419-420-0160, must adopt and adhere to written policies and procedures on discipline, behavior management, and suicide prevention that meet all of the requirements of this rule. (b) The discipline and behavior management policies and procedures must prohibit the following: (A) Spanking, hitting, or striking with an instrument. (B) Committing an act designed to humiliate, ridicule, or degrade a child in care or undermine the self-respect of a child in care. (C) Punishing a child in care in the presence of a group or punishment of a group for the behavior of one child in care. (D) Depriving a child in care of food, clothing, shelter, bedding, rest, sleep, toilet access, or parental contact. (E) Assigning extremely strenuous exercise or work or requiring a child in care to spend prolonged time in one position likely to produce unreasonable discomfort. (F) Using restraint or involuntary seclusion as discipline. (G) Permitting or	**Yes☐ No✓**	• **The agency submitted policies to the licensing coordinator that are in compliance with all applicable requirements.**

directing a child in care to punish another child in care. (H) Using any other kind of harsh punishment. (I) Denying a parent, guardian, or sibling the right to visit or communicate with a child in care solely as a disciplinary measure against the child in care. (J) Aversive conditions, which includes, but is not limited to, any technique designed to or likely to cause a child physical pain, the application of startling stimuli, and the release of noxious stimuli or toxic sprays, mists, or substances in proximity to the child in care. (K) Removing or limiting the use of a mobility aid or other assistive device for the purpose of controlling a child in care's behavior. (3) Behavior Management. (C) Use of restraints, if applicable. (i) Chemical restraint, meaning the administration of medication for the management of uncontrolled behavior, is prohibited. Chemical restraint is different from the use of medication for treatment of symptoms of severe emotional disturbances or disorders. (4) Suicide Prevention. The policy must include the following: (f) Suicide risk assessment procedures on the day of intake; (g) Documentation requirements for suicide ideation, self-harm, and special observation precautions to ensure immediate communication to all staff **The programs were out of compliance with some of the above requirements for Behavior Management Policies, and the following must be added:** • **Sage:1(K)** • **LTGH: 1(A-K), 3(C)(i)** • **ORR:1(A-K), 3(C)(i)** **The programs were out of compliance with some of the above requirements for Suicide Prevention Policies, and the following must be added:** • ***LTGH:*4(f)** • ***ORR:* 4(g) Missing "…. to ensure immediate communication to all staff"**		
419-470-0150 Referral and Initial Evaluation of Children (Technical Amended 01/14/20) (1) Referral. A residential care agency must have a policy that addresses the process by which children in care are referred to the residential care agency. The policy must include all of the following: (a) From whom referrals are accepted. (c) How information necessary to provide for the safety and care of children in care will be provided to the appropriate care staff: • **Sage: The Referral Policy was missing the above required information.**	**Yes☐ No✓**	• **The agency submitted a policy to the licensing coordinator that is in compliance with all applicable requirements.**

419-470-0160 Consents, Disclosures, and Authorizations *(Amended 02/01/2022)* (1) Consents. For each *child in care* in placement with a *residential care agency*, the *residential care agency* must ensure that a parent or legal guardian signs a consent that authorizes the *residential care agency* to undertake each of the following: (a) To provide routine and emergency medical care. However, if the parent or legal guardian relies on prayer or spiritual means for healing in accordance with the creed or tenets of a well-recognized religion or denomination, the *residential care agency* is not required to use medical, psychological, or rehabilitative procedures, unless the *child in care* is old enough to consent to these procedures and does so. The *residential care agency* must have policies and procedures for this practice, which are reviewed and approved by the child in care's parent or legal guardian. • ***ORR and LTGH:*** The Consent Policies were missing the above required information.	**Yes☐ No✓**	**The agency submitted policies to the licensing coordinator that are in compliance with the requirements.** **The ODHS Licensing Coordinators reviewed some consents verifying they are in compliance with applicable requirements.**
419-400-0180 Licensing Umbrella Rules: Restraints and Involuntary Seclusion: (Amended 07/01/2022) (1) A child-caring agency may only place child in care in a restraint or involuntary seclusion if the child in care's behavior poses a reasonable risk of imminent serious bodily injury to the child in care or others and less restrictive interventions would not effectively reduce the risk. (2) A child-caring agency may not place a child in care in a restraint or involuntary seclusion as a form of discipline, punishment, or retaliation or for the convenience of staff, contractors or volunteers of the child-caring agency. (3) If the child-caring agency utilizes restraints or involuntary seclusion as part of its practices, its use of restraints and involuntary seclusion must be in compliance with all applicable federal and state laws, regulations and rules. (4) A child in care placed in a restraint or involuntary seclusion must be continuously monitored by staff of the child-caring agency for the duration of the restraint or involuntary seclusion. (5) Any restraint or involuntary seclusion used on a child in care must be performed in a manner that is safe, proportionate and appropriate, taking into consideration the child in care's chronological and developmental age, size, gender identity, physical, medical and psychiatric condition and personal history, including any history of physical or sexual abuse. (6) The removal or limitation of the use of a mobility aid or other assistive device in a restraint is prohibited unless there is a risk of imminent serious bodily injury and less restrictive interventions would not effectively reduce the risk. (7) Removing or limiting the use of a mobility aid or other assistive device for the	**Yes☐ No✓**	. • **The agency submitted policies to the licensing coordinator that are in compliance with applicable requirements.**

purpose of controlling a child in care's behavior is prohibited and (8) If any restraint or involuntary seclusion lasts for more than 10 minutes, the child-caring must provide adequate access to the bathroom and water at least every thirty minutes to the child in care. (9) For any restraint or involuntary seclusion lasting more than 10 minutes a supervisor, trained in the non-violent crisis intervention system used by the child-caring agency must provide written authorization for the continuation of the restraint or involuntary seclusion every five minutes. (a) If the supervisor is not on-site at the time the restraint is used, the supervisor may provide the written authorization electronically. (b) The written authorization must document why the restraint or involuntary seclusion continues to be the least restrictive intervention to reduce the risk of imminent serious bodily injury in the given circumstances. (10) Restraint. (a) The following types of restraint of a child in care are prohibited: (A) Chemical restraint. (B) Mechanical restraint. (C) Prone restraint. (D) Supine restraint, except: (i) Supine restraint may be used only when the child in care is currently admitted to a secure children's inpatient treatment program or secure adolescent inpatient treatment program…(E) Any restraint that includes the nonincidental use of a solid object, including the ground, a wall or the floor, to impede a child in care's movement, except: (i) This type of restraint may be used if the restraint is necessary to gain control of a weapon or; (F) Any restraint that places or creates a risk of placing pressure on a child in care's neck or throat. (G) Any restraint that places or creates a risk of placing, pressure on a child in care's mouth, except: (i) This type of restraint may be used if the restraint is necessary for the purpose of extracting a body part from a bite. (H) Any restraint that impedes, or creates a risk of impeding, a child in care's breathing. (I) Any restraint that involves the intentional placement of hands, feet, elbows, knees or any object on a child in care's neck, throat, genitals or other intimate parts. (J) Any restraint that causes pressure to be placed or creates a risk of causing pressure to be placed, on a child in care's stomach, chest, joints, throat or back by a knee, foot or elbow. (K) Any other restraint which the primary purpose is to inflict pain. (b) Permissible use of restraint. A restraint may be used on a child in care in the following situations: (A) Holding a child in care's hand or arm to escort the child in care safely and without the use of force from one area to another; (B) Assisting the child in care to complete a task		

if the child in care does not resist the physical contact; or (C) Using a physical intervention if: (i) The intervention is necessary to break up a physical fight or to effectively protect a person from an assault, serious bodily injury or sexual contact; (ii) The intervention uses the least amount of physical force and contact possible: and (iii) The intervention is not a prohibited restraint identified in OAR 413-215-0077(8)(a). (c) Only child-caring agency staff and proctor foster parents who have been trained in a nationally recognized nonviolent crisis-intervention system may use restraint and only when necessary, as a last resort to prevent a child in care from inflicting harm to self or others. The restraint must be conducted within the parameters of the nationally recognized system in which the staff or proctor foster parent is trained. (d) Any use of restraint by a staff member or proctor foster parent of the child-caring agency, if the member is not trained in a nationally recognized nonviolent crisis intervention system, must also be reported to a Department licensing coordinator within one business day of occurrence. (e) Limitations. The child-caring agency must have a policy that prohibits the application of a nonviolent restraint to a child in care who has a documented physical condition that would contraindicate the use of that particular restraint, unless a qualified medical professional has previously and specifically authorized its use in writing for the child in care. Documentation of the authorization must be maintained in the child of care's record. (12) Records (a) A program shall maintain a record of each incident in which a reportable injury arises from the use of a restraint or involuntary seclusion. The record must include any audio or video recording immediately preceding, during and following the incident. (b) If a program places a child in care in a restraint, except as described in OAR 419-400-0180(8)(b)(A) or 419-400-0180(8)(b)(B) or involuntary seclusion, the program shall provide the child in care's case manager, attorney, court appointed special advocate and parent or guardian with: (A) Verbal or electronic notice that the restraint or involuntary seclusion was used as soon as practicable following the incident but not later than the end of the next business day; and (B) Written notice in compliance with OAR 419-400-0180(10)(c) that the restraint or involuntary seclusion was used as soon as practicable following the incident but not later than the end of the next business day.(c) The written notice must include: (A) A description of the restraint or involuntary seclusion, the date of the restraint or		

involuntary seclusion, the times when the restraint or involuntary seclusion began and ended and the location of the restraint or involuntary seclusion; (B) A description of the child in care's activity that necessitated the use of restraint or involuntary seclusion; (D) The names of each of individual who placed the child in care in the restraint or involuntary seclusion or who monitored or approved the placement of the child in care in the restraint or involuntary seclusion; (i) For each individual identified whether the individual was trained, as required by the Department of Human Services by rule, in the use of the type of restraint or involuntary seclusion used, the date of the individual's most recent training and a description of the types of restraint the individual is trained to use, if any. (ii) If an individual identified was not trained in the type of restraint or involuntary seclusion used, or if the individual's training was not current, a description of the individual's training deficiency and the reason an individual without the proper training was involved in the restraint or involuntary seclusion. (d) If an incident requires notice under 419-400-0180(b), not later than two business days following the date of the restraint or involuntary seclusion, the program shall hold a debriefing meeting with each individual who was involved in the incident and with any other appropriate program staff, shall take written notes of the debriefing meeting and shall provide copies of the written notes to the child in care's case manager, attorney, court appointed special advocate and parents or guardians. (e) If a program places a child in care in a restraint or involuntary seclusion and the child in care suffers a reportable injury arising from the restraint or involuntary seclusion, the program shall immediately provide the department and the child in care's attorney, court appointed special advocate and parents or guardians with written notification of the incident and access to and, upon request, copies of all records related to the restraint or involuntary seclusion, including any photographs and audio or video recordings. (f) If serious bodily injury or the death of staff occurs in connection to the use of the restraint or involuntary seclusion, the program shall provide the department with written notification of the incident not later than 24 hours following the incident. **See Sage, LTGH, and ORR below for details:**		

• ***Sage:*** (1)"….less restrictive interventions would not effectively reduce the risk." (2), (3), (5), (6), (7), (8), (9)(a)(b), (10)(a)(A)(B)(C)(D)(E)(i)(F)(G)(H)(I)(J)(K)(b)(A)(B)(C)(i)(ii)(iii)(c)" nonviolent crisis-intervention system may use restraint and only when necessary, as a last resort to prevent a child in care from inflicting harm to self or others. The restraint must be conducted within the parameters of the nationally recognized system in which the staff or proctor foster parent is trained."(d) (12)(a)(b)(A)(B)(c)(A)" the date of the restraint and the location of the restraint"(B)(D)(i)(ii)(d)(e)(f) • ***LTGH:*** (3),(4),(6),(7), (8), (9)(a)(b), (10)(a)(A)(C)(D)(E)(i)(F)(G)(i)(H)(I)(J)(K)(b)(A)(B)(C)(i)(ii)(iii))(c)"nonviolent crisis-intervention system may use restraint and only when necessary, as a last resort to prevent a child in care from inflicting harm to self or others. The restraint must be conducted within the parameters of the nationally recognized system in which the staff or proctor foster parent is trained."(d)(e) 12(a)(b)(A)(B)(c)(A))" the date of the restraint and the location of the restraint" (D)(i)(ii)(d)(e)(f) • ***ORR***: (3),(4),(6),(7), (8), (9)(a)(b), (10)(a)(A)(C)(D)(E)(i)(F)(G)(i)(H)(I)(J)(K)(b)(A)(B)(C)(i)(ii)(iii))(c)"nonviolent crisis-intervention system may use restraint and only when necessary, as a last resort to prevent a child in care from inflicting harm to self or others. The restraint must be conducted within the parameters of the nationally recognized system in which the staff or proctor foster parent is trained."(d)(e) 12(a)(b)(A)(B)(c)(A))" the date of the restraint and the location of the restraint" (D)(i)(ii)(d)(e)(f)		
419-400-0190 Licensing Umbrella Rules: Information Provided to Children in Care *(Adopted 02/01/2022* (1) Each child in care receiving services from a child-caring agency must be given the following: (a) Instruction regarding how a child in care may report suspected inappropriate use of restraint or involuntary seclusion; (b) Assurance that the child in care will not experience retaliation for reporting suspected inappropriate uses of restraint or involuntary seclusion and; (c) The telephone number for the toll-free child abuse hotline described in ORS 417.805 and the telephone numbers and electronic mail addresses for the program's licensing agency, the child in care's caseworker and attorney, the child in care's court appointed special advocate and Disability Rights Oregon. (2) The information must be provided by: (a) The Department of Human Services if the department placed the child in care in the child-caring agency; (b) The Oregon Youth Authority if the child in care has been committed to	**Yes✓ No☐**	. • **On September 20th, 2023, the licensing coordinator reviewed some of the youth records. Sage was found to be in compliance with the requirement. Mi Futuro and LTGH were not providing all of the above required information to the youth. The agency must submit a revised document that has all of the above requirements to the licensing coordinator.** **Repeat Finding from 2022**

the custody of the authority; or (c) The child-caring agency for all other children in care. • Documentation was not found to verify that the agency had provided the above required information to the youth in all Morrison programs at admission.		
419-470-0100 Medication *(Technical Amended 01/13/20)* A *residential care agency* must meet all of the following requirements: (1) Policy and procedures. The *residential care agency* must have policies and procedures that cover all prescription and non-prescription medications that address all of the following: (h) How the *foster care agency* and the *proctor foster home* will ensure compliance with OAR 413-070-0470 if it serves children in Department custody. • ***Sage:*** The Medication Policy was missing the above required information.	**Yes☐ No✓**	• **The agency submitted a policy to the licensing coordinator that is in compliance with the requirements.**

New Findings from Site Visit	Comments
419-470-0020(2)(a)&(c) Buildings are smoke free, clean and in good repair:	**419-470-0020(2)(a)&(c)** Buildings are smoke free, clean and in good repair: The following was identified as being in need of repair: Downtown Mi Futuro and Long-Term Group Home (LTGH): • **The following rooms were found to need touch up paint: Room #411, 414a, 415a, 420a, 508a, 510, 511a, 512** • **The following rooms were found to need small holes repaired and touch up paint. Room #403, 418a** • **Room 511a was missing an electrical outlet cover that must be replaced.** • **Room 522a had a wall that was dirty and must be cleaned.**

Interview Summary
At the Unannounced Inspection, Jorge Pelinski, and Holly Ivey, ODHS Licensing Coordinators, conducted private interviews with two youth who were residing at SAGE. A Teams Meeting occurred with Jorge Pelinski, Holly Ivey, ODHS Licensing Coordinator, and two youth from Mi Futuro, and two youth from the LTGH Program on September 21, 2023. Each of the youth spoke with the Licensing Coordinators privately with a translator present. The following information was obtained from the interviews: • Most of the youth stated things were going well for them while residing in the programs.

- When asked what they appreciated most about living in the programs the youth stated: “Watching documentaries, liked the exercise area, the big yard (playground), the courtyard garden, all of the things she has learned from the groups at the program, likes having private conversations with her mom.” Another youth stated, “Feeling grateful for the staff and the program.”
- Fun activities and recreation reported by the youth: Slip and slid and water balloons, the big recreation space in the backyard, getting time for parent visits, playing soccer, and playing games with the other youth in the gym.
- All youth mentioned that they receive three meals a day, with multiple snacks. The youth reported fresh fruit and vegetables are always available. One youth reported that he really enjoys eating the chicken that the program serves.
- All the youth stated there are no privacy restrictions in contacting their approved contacts. They stated they could have daily phone calls with approved contacts.
- All youth reported the program provides hygiene products, which includes, soap, shampoo, feminine products, and toothpaste.
- All youth reported that they could talk to staff if they had a concern or need. At SAGE it was reported that some of the staff would yell on occasion and that one staff is passive aggressive. One youth reported that a staff member told her, “She was fat and had an eating problem and eats too much.” **DHS Licensing Coordinator, Jorge Pelinski and Holly Ivey, spoke with the SAGE Program Director, Kelli Doolittle about the above stated concerns in an exit meeting on September 20, 2023. The Program Director stated she would follow up with the staff regarding the concerns raised. The Licensing Coordinator asked the Program Director to communicate the outcome of the follow up with licensing staff. Due to the alleged youth concerns, upon leaving, DHS Licensing Coordinator called the Child Welfare Hotline on September 20, 2023.**
- When asked what changes the youth would make to the programs, the following was reported: “Nothing, Double portion for the entrees at lunch on the weekends, an unlocked program to come and go as they please.”
- When asked if the youth feel safe in the programs the following was stated: “Yes, and no.” She feels unsafe when other youth have “outbursts or break things.” Three youth stated that they felt safe in the program and felt comfortable talking to staff about any concerns they may have. One youth stated they felt unsafe thirty percent of the time. When asked to clarify the thirty percent, youth stated, “I don’t like to be around a lot of people. I am use to living with just my mom and couple other people.” This youth stated that they do not have any concerns about getting physically hurt from peers or staff. This youth also shared that when staff knock on the door as a reminder to finish up showering, it startles her; which makes her feel unsafe. This writer asked youth if she felt comfortable talking to staff about her concerns. This youth shared that she could talk to staff about it. This youth had no other problems or concerns to report during interview.

Observations
At the Unannounced Inspections, the Program Director’s assisted with the walk through of the programs with Jorge Pelinski and Holly Ivey, ODHS Licensing Coordinators. Staff and youth were observed at the programs during the inspection walk through. The youth that were at the programs that day were observed to be at ease and comfortable in the environment. All areas of the programs (inside and outside) where youth had access were observed, to be well kept, clean and in good repair. The downtown program needed minor repairs, as stated above. The agency vehicles that the youth ride in were observed and meet the requirements per Licensing Rules. Food was observed to be in the refrigerators and in the pantries at both sites. The programs have chefs who are responsible for the meals, and meal are prepared fresh onsite. Medication was observed to be kept in locked cabinets inaccessible to youth.

Corrective Actions and Timeframes:

Please submit the following to verify compliance.

Within 45 days of receipt of this report **Morrison Youth and Family,** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must

submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to Jorge Pelinski, Licensing Coordinator at: Jorge.l.pelinski@odhsoha.oregon.gov

Licensing Coordinator's Signature: _____ Date: 10-3-2023

Manager Review: _____ Date: 10-2-2023